



Perspective

Climate obstruction at work: Right-wing populism and the German heating law

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ARTICLE INFO

Keywords:

Heating law
Socio-technical transition
Conflict
Discourse
Climate obstruction
Populism

ABSTRACT

Recently, there has been a certain reorientation in the field of transition studies. For a long time, the concept of ecological modernization and the focus on green niches were predominant. However, in light of the overall slow pace of sustainability transitions and increasing conflicts surrounding environmental and climate policy measures, there has been a stronger focus on incumbent and right-wing populist actors. The intense debates surrounding the so-called heating law (Gebäudeenergiegesetz, GEG) in Germany demonstrate that socio-technical transitions and policies aimed at achieving net zero should be conceptualized as socially contested processes to adequately reflect their societal and political character. We argue that more recent research on sustainable transitions that looks at the role of incumbent actors, and especially the concept of 'climate obstruction' is helpful for better understanding the delay of climate policies. Based on this assumption, we analyze the campaign against the law and identify five central discursive strands brought forward to dismantle the law: Expropriation (1), Disenfranchisement (2), Ideological Driven (3), Green Cronyism (4), and Demand to Take Everyone Along (5).

1. Introduction

Populist, right-wing governments such as the former Bolsonaro government in Brazil or Trump's administration in the US are well known for the role they are playing in the dismantling and the delay of climate protection policies. Yet, populist campaigns against such policies can also occur and significantly influence climate policy outcomes in countries that are not governed by right-wing populist actors. This has been the case for the campaign against the German heating law (*Gebäudeenergiegesetz*, GEG) drafted in 2023, which sparked intense debates and was mainly opposed by actors from the conservative and right-wing spectrum.

Even though the decarbonization of the heating sector is crucial for the success of energy sector transformations, the sector still lacks attention in transition studies and policy debates [1]. In 2022, heating accounted for nearly half of the global energy demand in buildings, and two-thirds of the heating energy supply still relies on fossil fuels [2]. In Germany, in 2023, more than 70 % of all household heating systems relied on gas and oil. Other important heating sources include district

heating, pellets, wood, and coal, while heat pumps (which would ideally be combined with solar PV) were only used in 5.7 % of the households [3]. In total this led to emissions of 102 million tons of CO₂ in 2023 in the building sector, accounting for approximately 15 % of the country's greenhouse gas emissions [4].

Thus, there has been a great need for action, especially since emissions exceed the projected target trajectory of Germany's Climate Protection Act. Additionally, the Russian war in Ukraine triggered an energy crisis in Germany, and the dependence on Russian gas supplies was increasingly seen as a problem. This situation led to the drafting of the GEG in 2023. With the new heating law, the lead ministries—the Federal Ministry for Economic Affairs and Climate Protection (Bundesministerium für Wirtschaft und Klimaschutz, BMWK) led by Robert Habeck of the Green Party, and the Federal Ministry for Housing, Urban Development, and Building (Bundesministerium für Wohnen, Stadtentwicklung und Bauwesen, BMWBS) led by the Social Democrat Klara Geywitz (Sozialdemokratische Partei Deutschlands, SPD) — sought to put the building sector on a path compatible with the then-current Climate Protection Act.

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Received 6 September 2024; Received in revised form 6 March 2025; Accepted 12 March 2025

Available online 27 March 2025

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A first draft law was presented on March 7, 2023, and it was finally passed by the German Bundestag on September 8, 2023 (for a detailed overview on the key measures and changes between the first draft and the adopted law, see Table 1). However, due to massive protests, several parts of the law were significantly weakened during the course of the debate. The conflicts mainly manifested in a massive media opposition-campaign led by right-wing parties and (tabloid) media [5].

In this perspective paper, we seek to explore the discursive strategies used to dismantle the heating law and present an analysis and interpretation of these conflicts. The growing tension over net-zero policies has already been analyzed for the United Kingdom [6]; [7]. We argue that the concept of climate obstruction is helpful in understanding the resistance to climate policies, and that sustainability research should critically reflect on its orientation towards largely consensual ecological modernization successes and governance optimizations.

Methodologically, our perspective paper is grounded in a web-based analysis in which, in addition to primary sources such as documents from ministries and parliaments, we mainly evaluate media contributions as well as comments from several parties. The latter include the conservative CDU/CSU (Christlich Demokratische Union and Christlich Soziale Union), the far-right climate-skeptical AfD (Alternative für Deutschland), and the liberal party FDP (Freie Demokratische Partei). The FDP played a special role during the GEG process. It was part of the

Table 1
Comparison of the first drafts and the final GEG law.

Regulatory issues	Draft GEG Laws (7 March 2023 and 3 April 2023)	Final GEG Law (passed on 8 September 2023)
Installation of new gas heaters	Effectively banned from 2024 (minimum share of 65 % renewable energy for new heaters)	Allowed until the municipal heat planning is in place; installation also permitted after 2028 if the municipal supplier plans for hydrogen (H ₂) or if the heaters are operated with 65 % biogas
Municipal heat planning	Not part of the discussion	Introduction of municipal heat planning as a precondition for the enforcement of the law; (obligatory by 2026 for cities with more than 100,000 inhabitants and by 2028 for remaining municipalities)
Hydrogen	Effectively high hurdles for hydrogen: option to install ‘H ₂ -ready’ gas heating systems, which must be technically capable of being converted to 100 % hydrogen; necessary prerequisite: legally binding investment and transformation plan for hydrogen networks in the supply area	Municipal heat planning also possible with H ₂ ; non-pipeline-bound H ₂ also allowed
Distribution of costs	Financial support for heat pumps	Expansion of financial support for heat pumps. Tenants bear the costs if landlords choose more expensive options (e.g., H ₂)
Old gas heaters	Replacement mandatory after 30 years or in case of damage	Rules for municipal heat planning also apply here: in case of damage of an old heater, a new (fossil fuel) heater may be installed for a maximum of 5 years
Energy consulting	Energy consulting only for heat pumps	Broader scope of energy consulting, including “qualified energy consultants” as well as chimney sweeps and installers
Biogas/Wood	Hybrid with a heat pump if the 65 % rule is followed	Wood heating allowed without restrictions

Source: Author’s elaboration based on: [40–47].

then ruling so-called traffic light coalition (consisting of the Social Democrats, the Greens and the FDP) from 2021 until late 2024 but strongly opposed the legislative proposal after public criticism emerged, and thus triggered a conflict within the government, especially with the Green Party [8]. However, our focus is less on analyzing the internal government dynamics, but rather on identifying the discursive practices that led to a significant weakening of the GEG. In the course of evaluating the material, we identify five discursive strands, which we present in the following after first introducing some conceptual considerations on sustainability transitions.

2. Thinking about transitions

Until the 2010s, sustainability transition researchers primarily focused on green niches and innovations [9]. Despite the progress in climate and environmental policy, these are insufficient to achieve the goals defined in the Paris Agreement, leading the focus to shift towards problems related to incumbency [10]; [11]. This younger research strand aims to analyze how influential actors attempt to block or weaken ambition in sustainability issues in general and climate policy approaches in particular, addressing a still weak point in the sustainability transitions debate.

In a similar vein and more recently Eckberg et al. ([12], p. 11-12) developed the concept of climate obstruction to conceptualize resistance against climate policy. They distinguish between three dimensions: primary, secondary, and tertiary obstruction. Accordingly, primary obstruction is the denial of climate change as human-caused. Secondary obstruction describes the attempt to weaken climate policies by actors who do not explicitly doubt the existence of climate change. Tertiary climate obstruction is manifested through everyday practices and ideological orientations of individuals who do not act in accordance with climate protection necessities. The concept of climate obstruction has already been empirically applied to numerous case studies, mostly in relation to nation-state contexts [13,14]. In reality, the three forms of climate obstruction identified by Eckberg et al. [12] intertwine and manifest in different ways in the discursive space as will be shown in the following.

3. Climate obstruction at work – the German heating law

The GEG clearly illustrates that climate policy approaches and its contestations are embedded in a broader social context that can offer a variety of entry points for climate obstruction. Remarkably, in the debates around the GEG, climate policy arguments play a marginal role. The opposition-campaign led by right-wing opposition parties (the conservative CDU and the right-wing populist and increasingly right-wing extremist AfD) shows that the climate-policy-driven GEG was conceived as an alleged form of disenfranchisement by green elites against the will of the people. In this sense, the narratives against the GEG also have a strongly populist orientation, constructing a dichotomy between the people, or those affected by the GEG, and the ruling elite (for right-wing strategies against climate policy in Germany, see [15]; [13]). There are clear parallels here to the United Kingdom [6,7].

Despite generally rather high approval rates for climate protection and a broader societal agreement on the necessity of an energy transition, climate and energy policies in Germany have increasingly developed into polarizing topics in recent years. This is especially the case when it comes to concrete measures – i.e., the question of who will be burdened how much in the course of the transition is highly politicizing and according to Mau et al. [16] a ‘trigger point’. Especially the energy transition has often been portrayed as a ‘green elite’ project against the majority of the people. Climate sceptic and regressive attitudes are particularly wide-spread amongst AfD voters [17]. The AfD already saw climate policy as an important ground of conflict in the late 2010s. Neupert-Doppler [18] suggests that it juxtaposes the dystopia of unabated global warming with the dystopia of an eco-dictatorship. Within

the conservative and neoliberal spectrum, criticism in this direction was also being voiced before the negotiations on the GEG [19]. Hence, the Federal Minister for Economic Affairs and Climate Action and Vice-Chancellor Robert Habeck, as well as his then State Secretary Patrick Graichen, who were significantly involved in the development of the GEG, were under heavy pressure from the beginning of the negotiations over the GEG.¹

The campaign against the heating law commenced when the draft was leaked before publication and passed to the biggest German yellow press newspaper *Bild*. With its article ‘Habeck wants to forbid oil and gas’ published in March 2023, and expressions such as the ‘heating hammer’, *Bild* set the tone for the ensuing debate [20].² Through the evaluation of statements, arguments, and positions of the right-wing opposition against the GEG, we identify five central discursive strands brought forward to dismantle the law: Expropriation (1), Disenfranchisement (2), Ideological Driven (3), Green Cronyism (4), and the Demand to Take Everyone Along (5).

Firstly, various right-wing political and media actors expressed the criticism that the GEG was a form of expropriation of homeowners. For example, former Federal Minister of Health Jens Spahn (CDU) argued that many homeowners could not afford the high investments in a heat pump, and therefore the GEG was considered as a form of expropriation [22]. The conservative magazine *Focus* spoke of “expropriation through the back door” [23]. The far-right AfD also argued in a similar vein in its campaign “Stop the Heating Hammer” [24]. Common to these narratives is the assumption that the law would threaten people's right to freely dispose of their (real estate) property and freely choose their heating technology.

Closely related to this is the second strand of criticism against the GEG, which assumes a kind of disenfranchisement of the German citizens. This argument is based on the assumption that people know best what is good for them and that the GEG represents a patronizing form of governance. This narrative was even more exaggerated. For example, the Bavarian CSU claimed in a social media campaign, “No to state heating espionage” combined with an image of Minister Habeck peering through a window [25]. The Thuringia state chairman of the CDU, Moritz Voigt, took this narrative further by comparing the law to the surveillance body of the GDR when accusing Habeck of trying to establish an “energy Stasi”.³ It is striking that the tone and narratives of the CDU/CSU are hardly distinguishable from those of the right-wing AfD [24]. These accusations share a strongly libertarian understanding of freedom that seeks to protect the individual from state paternalism.

The third discursive strand is based on the criticism that the Greens wanted to pursue an ideologically-driven heating policy, thereby endangering Germany's prosperity. For example, CDU environmental politician Andreas Jung argued that heating policy needed a “fundamental restart for a socially and technologically open heat transition” [26]. The criticism that the establishment of GEG was ideologically motivated, was mainly voiced by the far right. For example, the AfD polemized in its campaign “Stop the Heating Hammer”: “Inflation has

become a poverty trap for many people in Germany. While most citizens have to worry about making ends meet month after month, Habeck and his supporters in the traffic light government are already hatching the next ideological attack on our prosperity” [24]. In this discursive strand, classic arguments of the “discourses of delay” [27] are mixed, such as the demand for technological openness, which often seeks to prevent the prioritization of climate protection approaches, with prosperity-chauvinistic arguments.

The fourth discursive strand ties into the above quote and sees green cronyism at work, which allegedly produced the GEG. Implicitly, there is an assumption that the Greens would financially benefit from the GEG themselves. Networks established over the years are semantically reinterpreted in this strand as green cronyism. The familial connections of individual actors in the field fostered this narrative [28]. The underlying assumption here is that a green elite despises the “common people” and only seeks to enrich themselves. Exemplifying this, the AfD wrote: “The supporters of this green network claim to care about the climate and the future of the planet. In reality, they care about themselves. The main culprits assign each other the most lucrative positions and reinforce each other in their ideological delusion” [24].

In the fifth discursive strand, the elements of the four strands converge in the demand to take everyone along. In the context of the above-mentioned discursive strands, right-wing critics of the GEG argued that the law faced broad resistance and allegedly risked fundamentally delegitimizing climate policy. The demand to take everyone along thus insinuates that it is about passing a reasonable, balanced heating law. Furthermore, these arguments describe an alleged justice deficit, particularly affecting financially disadvantaged homeowners. As Alexander Dobrindt of the Bavarian CSU declared in the German Bundestag: “People are afraid that they cannot afford the law imposed by the traffic light government” [29]. Accordingly, its sister party CDU presents itself as a party that wants to pursue climate protection with the people: “For us as the CDU, it remains the case: We stand for climate protection with the people, not against them” [30].

A common denominator of the criticisms is that they follow a classic populist logic [31]: they construct a dichotomy between the will of the common people and a (green) elite that disregards its will out of self-serving or climate-political motives. Decidedly climate-skeptical arguments (primary form of obstruction) play only a subordinate role. Instead, attempts are made (successfully) to soften the legislative proposal by referring to everyday life and existing non-sustainable forms of heating (secondary and tertiary form of obstruction). The criticisms put forward in the media debate ultimately contributed to the legislative proposal being significantly weakened. In addition, the scaremongering triggered by the debate in large parts of the population and the associated misinformation led many homeowners to believe that they would have to buy new gas and oil heating systems quickly, as these would be banned from next year (which was not the case). As a result, sales of gas and oil heating systems rose sharply in 2023, while the number of heat pumps sold fell far short of forecasts (tertiary obstruction) [32].

4. What are the lessons learned from the GEG?

The example of the German heating law shows that resistance to climate policy must be taken very seriously and should be conceptualized within the sustainability transitions literature. Our analysis indicates that the three-dimensional concept of climate obstruction can be a helpful analytical tool [12,13]. Nevertheless, these initial results of our analysis of the discourse against the GEG suggest further research is needed in at least three areas.

First, a more in-depth analysis is needed to what extent these discourses are driven by other societal interests and deeper societal conflicts, and thus take on a particular prominence and sharpness in negotiation processes. For example, Sander [33] argues that the debate over the heating law is a typical socio-ecological transformation conflict. This reflects not only a growing polarization between different

¹ Patrick Graichen was dismissed in May 2023 during the course of the GEG debates. A central reason for this was that he was part of a commission for the appointment of a senior position, for which his best man was ultimately selected, violating compliance rules [19].

² At the end of 2024, the NGO LobbyControl examined the extent to which the interests of the fossil fuel industry may have contributed to the campaign. They found that the investment group KKR is both heavily invested in fossil fuels and is now the main shareholder of the Springer media group, which publishes the newspaper *Bild*. They couldn't find evidence for direct influence in the course of this campaign, but noted that KKR is lobbying in the energy sector and could have used *Bild* for this purpose [21].

³ In the GDR, the Ministry for State Security (in short: Stasi) spied on the population quite extensively. This is sometimes referred to in the public debate in Germany, although the accusation of using Stasi methods is a very fierce (and often very questionable) one.

population groups and milieus with very different attitudes and interests regarding the upcoming transformation [34]. Economic conflicts of interest are also being fought out in these conflicts. In the coming years, it will be decided whether heat supply will continue to be based on fossil or future green gases, or whether it will be converted to heat pumps and green district heating. Thus, the campaign against the heating law can also be interpreted as an expression of the lobbying power of the gas industry, which seeks to defend its business model [35]. In this context, it would be analytically fruitful to combine an analysis of the underlying interests, political-economic structures, and the discursive strategies of key actors [36].

Second, the discursive resistance against the GEG shows great parallels to the strategic approaches against net zero policies in the United Kingdom, which Ed Atkins analyzes. He identifies an anti-net-zero populism that is mainly based on three discursive approaches, “[...] first as undemocratic and imposed from above, second as expensive – and linked to a cost-of-living crisis, and third as a less-effective solution than continued fossil fuel extraction” ([6], p. 4). The populist thrust of the criticism, i.e., the construction of climate policy as an elite project directed against ordinary people, and the playing off of the social against the ecological are similarities with the case study presented here. In order to better understand and conceptualize climate obstruction discourses, more in-depth comparative studies are needed. In addition, the study by Paterson et al. on “intra-party populism” ([7], p. 333) within the British Tories points to the need to research climate obstruction efforts within political parties.

Third, there is the fundamentally political but also scientific question of what approaches exist to counter the strong resistance to sustainable heating laws and net zero policies in general. Is there a need for a green populism, and what might it look like [37]? Climate policies, such as the GEG, should be and should be communicated as an opportunity, so that they are less susceptible to populist resistance against net zero policies. However, this would require the proposals to be accompanied by social policies addressing issues of fair financing and redistribution. This would respond to the fact that energy poverty is a real and widespread problem in Germany [38]. Sticking to gas heating could even worsen the problem in the medium term. Heat pumps are often already cheaper to operate today than conventional heating systems [39], especially in the long term.

It is crucial that future communication about similar legislative measures considers these aspects. As our analysis shows, questions of justice and individual property are often instrumentalized and therefore appear particularly sensitive. Answers to questions about financial burdens must be prioritized and addressed right from the beginning. This includes the need to explain the long-term benefits of the measures and to offer concrete support and solutions to cushion the burdens. Only through such a sensitive and comprehensive approach can the trust of larger parts of the population be gained, acceptance for necessary legal changes increased, and right-wing populist attempts to dismantle climate policies be weakened.

CRedit authorship contribution statement

Tobias Haas: Writing – review & editing, Writing – original draft, Methodology, Investigation, Formal analysis, Conceptualization. **Hendrik Sander:** Writing – review & editing, Writing – original draft, Methodology, Investigation, Formal analysis, Conceptualization. **Anna Fünfgeld:** Writing – review & editing, Writing – original draft, Methodology, Investigation, Formal analysis, Conceptualization. **Franziska Mey:** Writing – review & editing, Writing – original draft, Methodology, Investigation, Formal analysis, Conceptualization.

Declaration of competing interest

The authors declare that they have no known competing financial interests or personal relationships that could have appeared to influence

the work reported in this paper.

Data availability

No data was used for the research described in the article.

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